

**BEFORE THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P. SARDESAI**

**AT PANAJI, GOA**

**In the matter of:**

VIKRAM SHAH ... Claimant

Versus

RIVA TRINDADE & 3 ORS. ... Respondents

**Notes of arguments on behalf of the claimant in support of application under section 17 of the arbitration and conciliation act, 1996 and other submissions viz amendment to defence statement, additional reply and production of documents.**

1. The present Application under Section 17 seeks protective interim measures in respect of the properties forming the subject-matter of the dispute (Survey Nos. 93/3 and 93/4 of Village Bambolim) and to secure the Claimant's substantial monetary claims arising out of the Articles of Association dated 01.04.2013 of M/s PVM Associates. The Application is maintainable. Post the 2015 Amendment, Section 17 confers upon the Arbitral Tribunal the same powers as a Court under Section 9. The Tribunal is fully empowered to grant interim measures for preservation of the subject-matter by appointment of a receiver securing the property which is subject matter of the dispute.
2. The Respondents' challenge to arbitrability stands rejected by this Tribunal vide order dated 01.05.2026 dismissing their Section 16 application. The principle of competence-competence under Section 16 has already been exercised.

Continued...

3. Under the AOA dated 01.04.2013, the properties (Survey Nos. 93/3 and 93/4) were introduced into PVM Associates by Late Pascoal Trindade as his capital contribution. They ceased to be his individual properties and contributed to the Association as his capital contribution for development. The Claimant and Respondent No. 4 advanced substantial sums for purchase of the properties, for clearances, sanctions and development.
4. Development of one of the property viz survey no. 93/3 was undertaken under the JVA dated 25.04.2014 duly executed by Late Mr. Pascoal for himself and his wife by virtue of POA and the other two associates with Kuval Projects Pvt. Ltd. Construction progressed substantially until stalled by injunction in Special Civil Suit No. 52/2013/A filed by the Comunidade of Bambolim.
5. After the demise of Pascoal Trindade, the Claimant and other stakeholders repeatedly requested Respondents Nos. 1 to 3 to cooperate in defending the pending civil and revenue proceedings and executing consent terms for the settlement of pending special civil suit 52/2013/A initiated by Comunidade of Bambolim. The Respondents failed and neglected to do so, resulting in quantifiable losses and continuing jeopardy to the subject properties.
6. The Claimant has a strong prima facie case on the basis of the AOA, the contemporaneous banking records and the conduct of the Respondent no.1 to 3.
7. The defence taken by the Respondents no. 1 to 3 is that various amounts received from the Claimant and Respondent No. 4 were returned or paid from the personal account of Late Mr. Pascoal Trindade. The relevant bank account of PVM Associates (Account No. 50200004014352 with HDFC Bank, Taleigao

Continued...

Branch) which was jointly operated by all three associates — Mr. Vikram Shah, Mr. Pascoal Trindade and Mr. Murlidhar Sadarangani. The first entry in the said bank statement which is annexed hereto at Annexure - A is the deposit of ₹2,21,00,000/- by M/s Kuval Projects Pvt. Ltd. into the account of M/s PVM Associates dated 26/04/2014. The second entry is the withdrawal/transfer of ₹1,40,00,000/- by Mr. Pascoal Trindade, which was deposited by him into his joint account with Mrs. Albertina Trindade (his wife) on 26/04/2014 and from this amount received from PVM associates 68,50,000/- and 71,00,000/- were paid to the Respondent no. 4 and claimant respectively (as reflected in the bank statement of HDFC Bank produced by the Respondents themselves at page 16 of their production application). This clearly demonstrates that the amount transferred to the account of claimant and respondent no. 4 was not the personal money of Late Mr. Pascoal Trindade, but the refundable deposit received by PVM Associates from M/s Kuval Projects Pvt. Ltd. under the Joint Venture Agreement executed jointly by all the associates. The sum of ₹2,21,00,000/- is therefore a joint liability of all the associates of PVM Associates.

8. Further, the statement of remittance to Pravar Trade Invest Pvt. Ltd. of ₹38,00,180/- over and above ₹71,00,000/- transferred on 03.05.2014 is also incorrect. One of the transfer dated 02.04.2013 (reflected at page 14 of the Respondents' production application) was returned on the same day (as reflected at page 15). The transfer of ₹33,00,180/- includes bank charges of ₹180/-. The net amount of ₹33,00,000/- transferred to M/s Pravar Trade Invest Pvt. Ltd. in 2013 in their account in Oriental bank of commerce at Goa was

Continued...

solely for the purpose of obtaining various clearances and other site expenses.

The bank statements clearly reveal that the entire amount of ₹33,00,000/- transferred by Mr. Pascoal to Pravar Trade Invest Pvt. Ltd. was received by him from Respondent No. 4 vide transfers dated 22.03.2013, 03.04.2013, 06.04.2013 and 30.04.2013.

|                    | Date       | Receipt        | Payment (Exp)  |                                                     |
|--------------------|------------|----------------|----------------|-----------------------------------------------------|
|                    | 04-04-2013 | 500000         |                | paid by Pascoal from amt recd from Murli on 22-3-13 |
|                    | 04-04-2013 | 1800000        |                | paid by Pascoal from amt recd from Murli on 3-4-13  |
| Village panchayat  | 05-04-2013 |                | 1149921        | for construction license                            |
| white negro        | 06-04-2013 |                | 20249          | public notice                                       |
| Sadekar Enviro     | 08-04-2013 |                | 200000         | MOEF consultant                                     |
| engineers pvt. Ltd |            |                |                |                                                     |
| cash withdrawn by  | 10-04-2013 |                | 950000         | for MISC exp                                        |
| PT                 |            |                |                |                                                     |
| recd from PT       | 16-04-2013 | 750000         |                | paid by Pascoal from amt recd from Murli on 15-4-13 |
| Rajesh raikar      | 17-04-2013 |                | 100000         | Architect                                           |
| Village panchayat  | 18-04-2013 |                | 259200         | for construction license                            |
| cash withdrawn by  | 19-04-2013 |                | 400000         | Misc exp                                            |
| PT                 |            |                |                |                                                     |
| recd from PT       | 04-05-2013 | 250000         |                | paid by Pascoal from amt recd from Murli on 30-4-13 |
| Village panchayat  | 04-05-2013 |                | 854029         | for constructin license                             |
| Raunaq rao         | 26-06-2013 |                | 29500          | legal fees                                          |
| CNK Associates     |            |                | 22472          | auditors fees                                       |
|                    |            | <b>3300000</b> | <b>3985371</b> |                                                     |

Note - 1) Late Mr. Pascoal has paid the entire amount of Rs. 33,00,000/- to M/s. Pravar Trade Invest pvt. Ltd after the receipt of payments from Respondent no. 4 for and towards the various expenses for the clearance of the properties and have not paid any amt of his own as clearly reflected in the bank statement by

Continued...

respondent no. 1 to 3 at page 14 & 15 annexed to the production application.

2) The statement of paying 1,09,00,180 to Pravar trade is also wrong as the payment of Rs. 5,00,000/- paid on 02-4-13 have returned and Rs. 180 is bank charges as reflected in the bank statement annexed to production application by Respondent 1 to 3 at page 14 and 15.

3) Annexing at **Annexure – B** the bank statement of Oriental bank of commerce at Panaji of M/s. Pravar Trade Invest Pvt. Ltd. to verify the details of expenses for the purpose of clearances.

9. The Claimant and Respondent No. 4 have never claimed any independent entitlement or ownership over the subject properties. The entire arbitration is for the limited purpose of securing the cooperation of Respondents Nos. 1 to 3 for settlement of the pending special civil suit filed by the Comunidade of Bambolim, and thereafter for joint exploitation of the properties for mutual benefit and sharing of profits in terms of the AOA. The order below exhibit D - 170 dated 13-10-2022 as annexed by Respondent no. 1 to 3 at page 54 to 57 to the production application clearly specifies in para 4 verbatim “Basically, said document was executed by the parties with the object of developing the properties mentioned therein. It also specifies the share of the defendant no. 1 was decided based on his contribution by way of providing the properties for the development. The other two parties had contributed in terms of money. “ It is pertinent to note that respondent 1 to 3 have also expressed the similar contention in clause 16 of the statement of defence dated 07/03/2025 that the association was formed with the view to earn income from the development and/or sale of the properties bearing survey no. 93/3 & 93/4 of village Bambolim.

Continued...

10. The Respondents' vague assertion that the contents of the balance sheets and statements of income and profit and loss account are "seriously disputed", without indicating any specific year, transaction or entry, is wholly uncalled for. The Respondents must either withdraw such bald allegations or prove them by providing specific details of alleged wrong doing
11. The Respondents 1 to 3 themselves have approached this Tribunal with unclean hands by suppressing material facts that the entire funding for the purchase of the subject properties and other expenses for the title clearance and obtaining construction permissions etc was received by Late Mr. Pascoal from various parties viz M/s. Loonkar developers pvt. Ltd., M/s. Pravar Trade Invest Pvt. Ltd., Respondent no. 4 and others. As a matter of fact, Late Mr. Pascoal Trindade did not invest any of his own money at any time — either for the purchase of land, deletion of names of tenants, or for obtaining clearances. The following statement clearly indicate the funds received by him from various sources and the corresponding expenses.

*AS per*

| Date       | Amount Received                   |                     |              |                |  |
|------------|-----------------------------------|---------------------|--------------|----------------|--|
|            | Loonkar Developers/Sumer Builders | Pravar Trade Invest | Murlidhar S. | Ramesh S. Shah |  |
| 01-04-2006 | 10000000                          |                     |              |                |  |
| 26-04-2006 | 5000000                           |                     |              |                |  |
| 03-05-2006 | 10000000                          |                     |              |                |  |
| 13-01-2007 | 7000000                           |                     |              |                |  |
| 13-01-2007 | 3000000                           |                     |              |                |  |
| 24-06-2006 |                                   | 800000              |              |                |  |
| 15-01-2007 |                                   | 1500000             |              |                |  |

Continued...

|            |                             |         |         |         |          |
|------------|-----------------------------|---------|---------|---------|----------|
| 10-03-2007 |                             | 500000  |         |         |          |
| 01-04-2007 |                             | 600000  |         |         |          |
| 25-08-2007 |                             | 1500000 |         |         |          |
| 07-09-2007 |                             | 1000000 |         |         |          |
| 07-09-2007 |                             | 50000   |         |         |          |
| 23-10-2007 |                             | 100000  |         |         |          |
| 01-11-2007 |                             | 1000000 |         |         |          |
|            | Total recd by Mr. Pascoal   |         |         |         | 42050000 |
| Less       | <del>Expenses 2006-07</del> |         |         |         | 23345000 |
|            | Balance with Mr. Pascoal    |         |         |         | 18705000 |
| Less       | Expenses 2007-08            |         |         |         | 14750000 |
|            | Balance with Mr. Pascoal    |         |         |         | 3955000  |
|            |                             |         |         |         |          |
| 08-05-2009 |                             |         |         | 1760000 |          |
| 08-12-2011 |                             |         | 1000000 |         |          |
| 09-05-2012 |                             |         | 550000  |         |          |
| 24-09-2012 |                             |         | 500000  |         |          |
| 16-10-2012 |                             |         | 1000000 |         |          |
| 17-10-2012 |                             |         | 1000000 |         |          |
| 18-10-2012 |                             |         | 950000  |         |          |
| 20-10-2012 |                             |         | 1000000 |         |          |
| 07-11-2012 |                             |         | 200000  |         |          |
| 22-11-2012 |                             |         | 1150000 |         |          |
| 22-03-2013 |                             |         | 500000  |         |          |
| 03-04-2013 |                             |         | 1800000 |         |          |
| 15-04-2013 |                             |         | 750000  |         |          |
| 30-04-2013 |                             |         | 250000  |         |          |
|            |                             |         |         |         |          |
|            | Balance with Mr. Pascoal    |         |         |         | 16365000 |
| Less       | Expenses 2009 to 2013       |         |         |         | 10618515 |
|            | Balance with Mr. Pascoal    |         |         |         | 5746485  |

|                                                                                                                                                           |  |          |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------|
| EXPENDITURE (sale deed expenses in the year 2006)                                                                                                         |  |          |
| Paid to Mergulhao & Fly                                                                                                                                   |  | 13845000 |
| Paid to Raghurai Tamba                                                                                                                                    |  | 9500000  |
|                                                                                                                                                           |  | 23345000 |
| Expenditure (Removal of names of the Tenants from form I & XIV in the year 2007-08)                                                                       |  |          |
| Paid to Tenants ( Dilip & Fly)                                                                                                                            |  | 3000000  |
| Paid to Tenants (Rama Cuncolkar, Madhu Cuncolkar, Revoti Caetano Gomes ,Pundalik Cuncolkar, Rukmini Bhikaro Gauns alias Gomes, Rama Gomes alias Lotlikar) |  | 10850000 |
| Paid commission to Gurudas Naik                                                                                                                           |  | 500000   |
| Paid legal fees                                                                                                                                           |  | 400000   |
| Total                                                                                                                                                     |  | 14750000 |

Continued...

|                                                                                   |               |
|-----------------------------------------------------------------------------------|---------------|
| Expenditure for obtaining clearance and permissions in the year 2011-12 , 2012-13 |               |
| Sanad Charges                                                                     | 1892721       |
| Infrastructure Tax                                                                | 5962594       |
| Construction License                                                              | 2263200       |
| Architect Fees                                                                    | 100000        |
| Sadekar Environment                                                               | 400000        |
|                                                                                   | 10618515 ( C) |

Note - The above statement clearly indicates that Late Mr. Pascoal have received advances from other parties and have incurred the expenses but himself have not invested any amount

12. Significantly, the communication of Respondent No. 1 dated 18.03.2023 (relied upon by him) at annexure R-1 A page 59 to the statement of defence calling for statements of account of various joint businesses of Late Mr. Pascoal Trindade and claimant does not even mention the statement of account and/or any other information of M/s PVM Associates for reasons best known to him. The claimant does not recall that at any time the Respondent no. 1 to 3 have ever enquired or have asked for any information viz a viz M/s. PVM Associates and about the subject properties. Probably he must have been misguided or ill- advised that since the subject properties are registered in his Late father's name he can usurp It is only after filing of the arbitration proceedings the Respondent no. 1 is alleging about not receiving the accounting details. As matter of fact there is not a single transaction save and accept the credit/ debit of interest / bank charges after the demise of Mr. Pascoal It is pertinent to note here that the office and only bank account of M/s. PVM Associates were at Goa and all the records / documents in respect of M/s. PVM Associates were managed and maintained at Goa office.

Continued...

Annexed at **Annexure – C** the bank statement of M/s. PVM Associates indicating no transactions after the demise of Mr. Pascoal.

13. A plain reading of clause no. 16 of the AOA makes it clear that it was the joint responsibility of Late Mr. Pascoal Trindade and the Claimant to obtain clear legal title in respect of the said properties including survey no. 93/2 conveyed to M/s. Loonkar Developers Pvt. Ltd. After the demise of Mr. Pascoal, the responsibility naturally fell upon the Claimant and the Respondents 1 to 3. Owing to the total non-cooperation of the Respondent 1 to 3, M/s Loonkar Developers approached the Claimant to do the needful, as he was the only person fully conversant with the details of the settlement with the Comunidade and other aspects relating to the subject properties. **It is pertinent to note that the application made by Loonkar Developers Pvt. Ltd. to be implead PVM Associates in the pending special civil suit no. 52/2013/A was dismissed under the order dated 13<sup>th</sup> day of 2022 as annexed by Respondent 1 to 3 at page 54 to 57 of production application whilst clearly stating Verbatim “The plaintiff has given no objection to this application. The defendant desires to implead M/s. PVM Associates as party in the present suit. It is contended by the defendant no. 20 that vide Article of Association dated 01-04-2013, the suit property was transferred by defendant no. 1 to the above-mentioned association of persons and thus the said Association is necessary party to the present suit. The defendant no. 20 has relied on the copy of the Article of Association.” Under the circumstances as above M/s. Loonkar Developers requested the claimant to depose special civil suit no. 52/2013/A. It is astonishing for the Respondent 1 to 3 to contend that the Claimant has**

Continued...

claimed ownership or co-ownership of the subject properties at any point of time, either in the Statement of Claim or otherwise. The subject properties were purchased in the name of Late Mr. Pascoal Trindade. The suit filed by the Comunidade of Bambolim is for declaration of their ownership against Mr. Pascoal and others. The Claimant could not have made any **contrary** statement claiming ownership before the Civil Court in that suit. It is further pertinent to note that the plaintiffs in the said special civil suit had not objected for the impleadment of PVM Associates as they were aware that the claimant is the only responsible entity to amicably settle the suit in terms of the draft consent terms submitted by Late Mr. Pascoal and his wife. The application by Loonkar developers to implead PVM associates was dismissed on principle grounds viz the application should have been filed by the respondent 1 to 3 instead of Loonkar Developers and on the ground of limitation.

14. The above factual matrix, supported by the contemporaneous bank statements produced by the Respondents 1 to 3 themselves, establishes a strong prima facie case in favour of the Claimant that the funds were Association funds, the properties were contributed by Late Mr. Pascoal to Association for the purpose of joint development, and the Respondents 1 to 3 as successors are bound to cooperate.
15. The balance of convenience lies overwhelmingly in favour of the Claimant. The properties are unique and immovable. Any further alienation, encumbrance or adverse order in the pending civil proceedings will cause irreversible prejudice that cannot be adequately compensated in money.

Continued...

16. The Claimant's monetary claims (including the quantified loss of approximately ₹20 crores) will become illusory if the underlying properties are not protected.
17. An order restraining the Respondents 1 to 3 from creating third-party rights over Survey Nos. 93/3 and 93/4 is the minimum necessary protection.

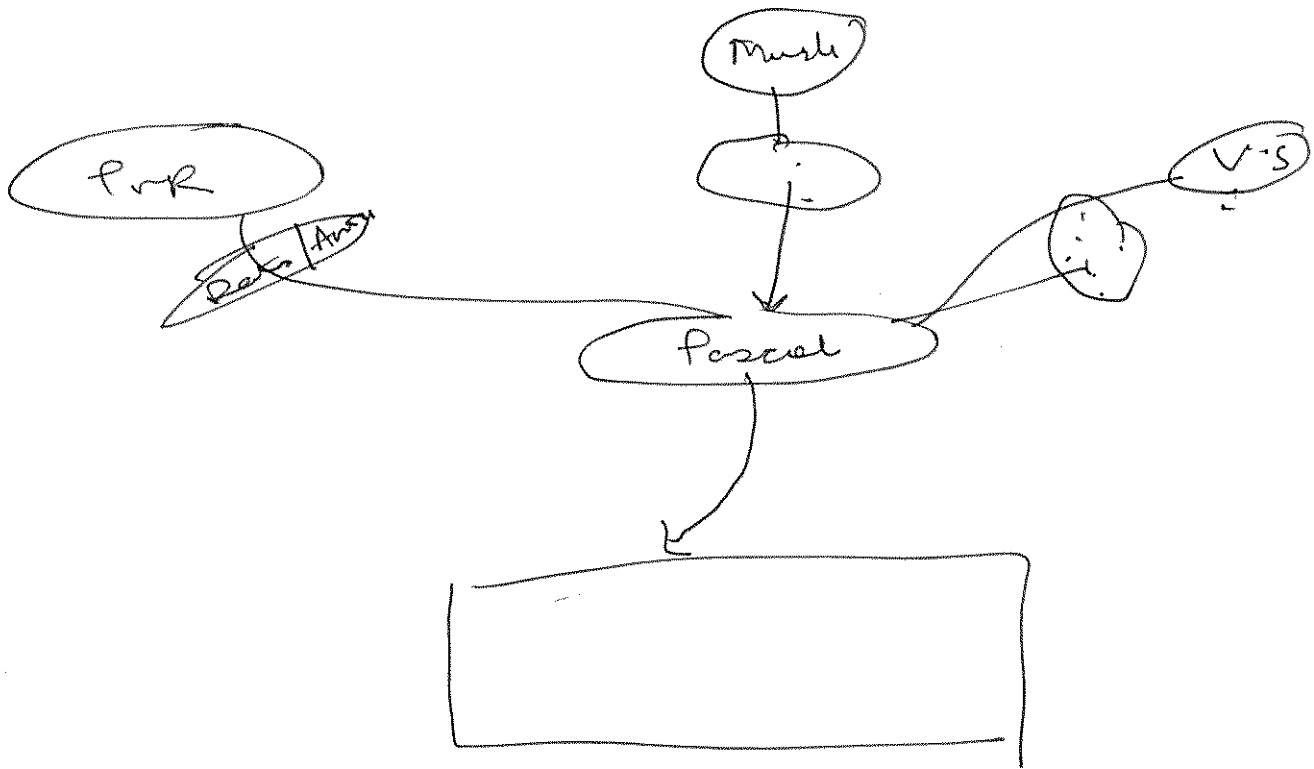
Dated \_\_\_ day of August 2026

**At Goa**

**Note – The respondent no. 1 to 3 have suppressed the vital fact that late Mr. Pascoal Trindade was director holdings substantial shares of M/s. Kuval projects pvt. Ltd. and now the Respondent no. 1 is the Director and shareholder.**

- ② Mr. Pascoal was paying wealth tax on the subject Properties till <sup>March</sup> 2013 reflecting the subject properties owned by himself & his wife. but is not showing these property in his wealth tax statement in 2014 since contributed to Pvm Associates.
- ③ Mr. Pascoal was also director of m/s. Prawn Trade without holding any shares till 2017 & after that R 1 is additional director without holding any shares.

Continued...



**Statement of funding and expenses 2006 to 2013 from the account of Late Mr. Pascoal**

| funding recd details |                                                 |          |            |          |            |         |            |          |          |          |
|----------------------|-------------------------------------------------|----------|------------|----------|------------|---------|------------|----------|----------|----------|
| Period               | payment for                                     | Total    | LoanKar    |          | Pravar     |         | Murlidhar  |          | Total    | Balance  |
|                      | sale deed - 93/2, 93/3 & 93/4                   |          | Date       | Amt      | Date       | Amt     | Date       | Amt      |          |          |
| FY 2006-07           | sale deed - owners                              | 13845000 | 01-04-2006 | 10000000 | 24-06-2006 | 800000  |            |          |          |          |
|                      | sale deed - confirming par                      | 9500000  | 26-04-2006 | 5000000  | 15-01-2007 | 1500000 |            |          |          |          |
|                      |                                                 |          | 03-05-2006 | 10000000 | 10-03-2007 | 500000  |            |          |          |          |
|                      |                                                 |          | 13-01-2007 | 7000000  | 01-04-2007 | 600000  |            |          |          |          |
|                      |                                                 |          | 13-01-2007 | 3000000  | 25-08-2007 | 1500000 |            |          |          |          |
|                      |                                                 |          |            |          | 07-09-2007 | 1000000 |            |          |          |          |
|                      |                                                 |          |            |          | 07-09-2007 | 50000   |            |          |          |          |
|                      |                                                 |          |            |          | 23-10-2007 | 100000  |            |          |          |          |
|                      |                                                 |          |            |          | 01-11-2007 | 1000000 |            |          |          |          |
|                      |                                                 | 23345000 |            | 35000000 |            | 7050000 |            | 0        | 42050000 | 18705000 |
| FY 2007-08           | payment for deletion of names from form I - XIV |          |            |          |            |         |            |          |          |          |
|                      | Paid to Tenants ( Dilip & F                     | 3000000  |            |          |            |         |            |          |          |          |
|                      | Paid to Tenants (Rama                           |          |            |          |            |         |            |          |          |          |
|                      | Cuncolkar, Madhu                                |          |            |          |            |         |            |          |          |          |
|                      | Cuncolkar,Revoti Caetano                        |          |            |          |            |         |            |          |          |          |
|                      | Gomes ,Pundalik                                 |          |            |          |            |         |            |          |          |          |
|                      | Cuncolkar, Rukmini                              |          |            |          |            |         |            |          |          |          |
|                      | Bhikaro Gauns alias                             |          |            |          |            |         |            |          |          |          |
|                      | Gomes, Rama Gomes                               |          |            |          |            |         |            |          |          |          |
|                      | alias Lotlikar)                                 | 10850000 |            |          |            |         |            |          |          |          |
|                      | Paid commission to                              |          |            |          |            |         |            |          |          |          |
|                      | Gurudas Naik                                    | 500000   |            |          |            |         |            |          |          |          |
|                      | Paid legal fees                                 | 400000   |            |          |            |         |            |          |          |          |
|                      |                                                 | 14750000 |            |          |            |         |            |          |          | 3955000  |
| FY 2009-13           | payment for NOC, sanad & contruction license    |          |            |          |            |         |            |          |          |          |
|                      | Sanad Charges                                   | 1892721  | 08-05-2009 | 1760000  |            |         | 08-12-2011 | 1000000  |          |          |
|                      | Infrastructure Tax                              | 5962594  |            |          |            |         | 09-05-2012 | 550000   |          |          |
|                      | Construction License                            | 2263200  |            |          |            |         | 24-09-2012 | 500000   |          |          |
|                      | Architect Fees                                  | 100000   |            |          |            |         | 16-10-2012 | 1000000  |          |          |
|                      | Sadekar - Environment co                        | 400000   |            |          |            |         | 17-10-2012 | 1000000  |          |          |
|                      |                                                 |          |            |          |            |         | 18-10-2012 | 950000   |          |          |
|                      |                                                 |          |            |          |            |         | 20-10-2012 | 1000000  |          |          |
|                      |                                                 |          |            |          |            |         | 07-11-2012 | 200000   |          |          |
|                      |                                                 |          |            |          |            |         | 22-11-2012 | 1150000  |          |          |
|                      |                                                 |          |            |          |            |         | 22-03-2013 | 500000   |          |          |
|                      |                                                 |          |            |          |            |         | 03-04-2013 | 1800000  |          |          |
|                      |                                                 |          |            |          |            |         | 15-04-2013 | 750000   |          |          |
|                      |                                                 |          |            |          |            |         | 30-04-2013 | 250000   |          |          |
|                      |                                                 | 10618515 |            | 1760000  |            | 0       |            | 10650000 | 16365000 | 5746485  |